

# Privacy Policy

SwordPay | swordpay.com | Effective: 28 May 2026

SwordPay respects your privacy and is committed to protecting the personal data we process about you. We are the data controller for that data. This Policy supplements but does not form part of our Terms of Service. We may update it at any time, and material changes will be communicated by feed notification, in-platform message, or email.

## What counts as personal data

Personal data means information that identifies you, or that can reasonably be linked to you, directly or indirectly. It does not include data we hold in deidentified, aggregated, or anonymised form.

## Age restriction (18+)

SwordPay is intended only for individuals aged 18 or older. By using SwordPay you represent that you are 18 or older. We do not knowingly collect data from anyone younger.

## If you choose not to provide personal data

Certain data is necessary for us to provide SwordPay or specific features — for example, identity verification for Creators. If you decline to provide it, we may not be able to provide the relevant feature or any service at all.

## Categories of personal data

### Fans.

Email address, phone number where provided, username and password, avatar or header image, subscriptions and purchases, direct messages, comments, and support enquiries.

### Creators (all of the above, plus).

Full legal name; residential address; date and place of birth; country of residence; government-issued photo ID and a copy provided to our verification provider; a selfie provided to our verification provider; bank account, payout details, and payout country; tax identification and VAT number where applicable; W-9 / 1099-MISC / 1099-NEC for US Creators; signed release forms where you appear in another Creator's Content; and social-media handles or websites used to corroborate identity and likely content type.

### Content Collaborators.

Government-issued photo ID and selfie (held by our verification provider), a signed release form, the pass/fail result of the age-and-identity check, and metadata associated with that check.

### Financial data.

Tokenised payment-card details — we do not receive the full card number, expiry, or CVC; we receive the first six and last four digits, the card type, and an expiry token — plus billing address, wallet funds, and transaction history.

### Technical data.

IP address and country code, user agent, log data, and cookies and usage data (see our Cookie Notice).

**Face Recognition Data.**

Used only by our third-party verification provider to match your selfie to your ID. We do not collect, receive, possess, or have access to Face Recognition Data.

**Background-screening data (US only).**

Where you are based in the US, we may use background-screening providers to confirm you have not been convicted of a serious offence, including by checking sex-offender registries, using your full name and date of birth.

## Onboarding

**Creators.**

Before a Creator account can earn, we collect User Data and Financial Data, confirm your country of residence, conduct third-party age and identity verification (currently Ddidit), and confirm you have not previously been banned from SwordPay.

**Fans.**

Before a Fan account can transact, we collect User Data and Financial Data, confirm country of residence, and — where required by local law such as the UK Online Safety Act — require additional age assurance. This may include email-address age estimation (a third party checks whether the email has been registered at sites that confirm age) or facial age estimation (a third party estimates whether you are over 18 from an image of your face; this is not facial recognition and does not match you to an identity).

**Periodic re-authentication.**

We may require Creators to complete periodic selfie checks on a rolling 30-day cycle, with additional checks for high-risk jurisdictions or flagged accounts. Where the law allows, our verification provider may retain Face Recognition Data to make subsequent re-authentication easier; you may withdraw consent for that retention by emailing [compliance@swordpay.io](mailto:compliance@swordpay.io).

## How we use personal data and our legal bases

| Purpose                                                          | Legal basis                             |
|------------------------------------------------------------------|-----------------------------------------|
| Creating and operating your account                              | Contract performance                    |
| Identity and age verification (Face Recognition Data)            | Consent                                 |
| Email and facial age estimation (Fans)                           | Consent / Contract performance          |
| Maintaining the verification record                              | Contract performance / Legal obligation |
| Fulfilling Creator Interactions, processing payments and payouts | Contract performance                    |
| Moderating Content, including direct messages                    | Contract performance                    |
| Removing illegal content and suspending offending accounts       | Legal obligation / Contract performance |
| Maintaining a banned-user record                                 | Legitimate interests / Legal obligation |

| Purpose                                                                     | Legal basis                                    |
|-----------------------------------------------------------------------------|------------------------------------------------|
| Reporting illegal activity to law enforcement and bodies such as NCMEC      | Legal obligation / Public interest             |
| Detecting and investigating fraud, money laundering, and sanctions breaches | Legal obligation / Legitimate interests        |
| Background screening for serious convictions (US)                           | Legal obligation / Substantial public interest |
| Communicating with you about your account                                   | Contract performance                           |
| Improving the platform                                                      | Legitimate interests                           |
| Defending or bringing legal claims                                          | Legitimate interests                           |
| Sale, merger, or restructuring                                              | Legitimate interests                           |

We do not make solely automated decisions that have legal or similarly significant effects on you.

## Sources of personal data

We obtain your data directly from you, automatically through your use of SwordPay, and from our service providers — including our identity-verification provider, background-screening provider, and payment processor.

## Who we share data with

| Recipient                                        | Purpose                                     | Legal basis                             |
|--------------------------------------------------|---------------------------------------------|-----------------------------------------|
| Payment processors                               | Process Fan Payments and Creator Payouts    | Contract / Legitimate interests         |
| Identity-verification provider (Didit)           | Confirm Creator and Collaborator identity   | Consent / Legal obligation              |
| Age-estimation providers                         | Confirm Fan age in regulated locations      | Consent / Legal obligation              |
| Content-moderation providers (incl. Sightengine) | Detect prohibited Content                   | Legitimate interests / Legal obligation |
| Background-screening providers (US)              | Confirm absence of serious convictions      | Legitimate interests / Public interest  |
| Hash-list providers (IWF, NCMEC, StopNCII.org)   | Detect and report CSAM and NCII             | Legal obligation / Public interest      |
| Law-enforcement and regulators                   | Comply with valid legal requests            | Legal obligation                        |
| Tax authorities                                  | Reporting under applicable law (incl. DAC7) | Legal obligation                        |
| Professional advisers                            | Provide services to us                      | Legitimate interests                    |
| Group companies                                  | Coordinate operations                       | Legitimate interests                    |
| Acquirers in a sale or merger                    | Effect the transaction                      | Legitimate interests                    |

We do not sell personal data, and we do not share personal data for cross-context behavioural advertising.

## International data transfers

Where recipients are outside the UK, EEA, and Switzerland, we transfer data to countries deemed adequate, under appropriate safeguards such as the UK International Data Transfer Agreement or EU Standard Contractual Clauses, or where otherwise authorised by law. Contact [compliance@swordpay.io](mailto:compliance@swordpay.io) for detail on the mechanism used.

## Data retention

| Data type                                                          | Retention                                                           |
|--------------------------------------------------------------------|---------------------------------------------------------------------|
| Active-account data                                                | Lifetime of the account                                             |
| Closed-account data (general)                                      | 1 year after closure, then deleted                                  |
| Identity-verification records                                      | 5 years after account closure                                       |
| Transaction records                                                | 7 years (tax and financial-reporting compliance)                    |
| Trust-and-safety records (ToS breach / suspected illegal activity) | As long as needed for investigation and law-enforcement cooperation |
| Banned-user records                                                | Retained indefinitely to prevent re-registration                    |
| Legal-claim records                                                | Until the relevant statutory limitation period ends                 |

## Your rights

Subject to legal exemptions, you may withdraw consent, access the data we hold about you, correct inaccurate data, delete your data, restrict our processing, port your data to another controller, and object to processing based on legitimate interests. Exercise these rights by emailing [compliance@swordpay.io](mailto:compliance@swordpay.io).

## Complaints and contacts

UK: Information Commissioner's Office (ICO) — [ico.org.uk](https://ico.org.uk) — 0303 123 1113. EEA: your country's data-protection regulator. Switzerland: the Federal Data Protection and Information Commissioner (FDPIC). Our EU representative under Article 27 GDPR is available on request via [compliance@swordpay.io](mailto:compliance@swordpay.io).

## United States disclosures

We do not sell personal data and do not share it for cross-context behavioural or targeted advertising. Under the CCPA we collect identifiers, customer records, protected classification characteristics, commercial information, biometric information (limited to Face Recognition Data held by our provider, to which we have no access), internet and network activity, sensory information, professional information where supplied, inferences, and communication preferences. California residents may appeal a privacy-rights decision and, if denied, contact the Attorney General. Although we do not sell personal data, Nevada residents may submit an opt-out request via [compliance@swordpay.io](mailto:compliance@swordpay.io).

## DAC7 and other tax reporting

Where required, including under the EU DAC7 directive, we report Creator-earnings information to local tax authorities, limited to what the law requires.

General privacy enquiries: [compliance@swordpay.io](mailto:compliance@swordpay.io)

Last updated: 28 May 2026